

Court No. - 21

Case :- WRIT - C No. - 7 of 2024

Petitioner :- M/S Rajpal Singh Cane Crusher

Respondent :- State of U.P.

Counsel for Petitioner :- Uttar Kumar Goswami

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The instant petition has been filed praying for a writ of mandamus commanding the respondents to forthwith restore electricity supply to the premises of the petitioner and for a further direction to respondent no.3 (Sub-Divisional Officer, Electricity Distribution Division, Chandpur, District Bijnor) to decide his representation dated 07.06.2023 wherein the petitioner has raised the dispute relating to the correctness of the amount being demanded from him as arrears of electricity charges.

2. The case of the petitioner is that the meter was removed for permanent disconnection in November, 2022 and before that, the demand notice dated 18.10.2022 was issued for a sum of Rs.16,60,871/-. However, now the respondents have issued another notice for a sum of Rs.20,33,773/-, which is *ex facie* illegal.

3. It is not disputed by counsel for the petitioner that the petitioner is liable to pay electricity charges as was demanded from him by notice dated 18.10.2022.

4. Having regard to the said fact, we enquired from the counsel for petitioner if the petitioner is ready to deposit the said amount so that a direction could be issued to the respondents to decide his claim in terms of Clause 6.5 of Electricity Supply Code, 2005. He states that the petitioner will deposit the same in installments.

5. Counsel for the respondent-Electricity Department submits that he has no objection in case the aforesaid amount is deposited in three equal monthly installments.

6. Accordingly, the petition is **disposed of** as follows:-

(i) The petitioner will deposit Rs.16,60,871/- in three equal monthly installments. The first installment will become due and payable by the end of this month and next by the end of February,

2024 and so on.

(ii) After deposit of the second installment, the third respondent shall decide the objections/ representation of the petitioner dated 07.06.2023 by a speaking order.

(iii) The deposit of remaining amount will abide by the decision that would be taken by respondent no.3 on the objections/ representation of the petitioner dated 07.06.2023.

(iv) It is further provided that after deposit of second installment, the respondents will restore the electricity supply to the premises of the petitioner.

Order Date :- 10.1.2024

AKShukla/-

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)